



## AGENDA REPORT

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**Date:** January 23, 2018

**To:** City Manager for Council Action

**From:** Director of Finance

**Subject:** Adoption of a Resolution Accepting the AB1600 Report on Development Impact Fees for Fiscal Year Ended June 30, 2017 and Making Findings Regarding the Continuing Need for Unexpended Balances of Impact Fees as of June 30, 2017

### EXECUTIVE SUMMARY

Attached is the AB1600 Report on Development Impact Fees for the fiscal year ended June 30, 2017. This report is supplied pursuant to Government Code Section 66000(b)(2). Staff has also determined that the City has Traffic Mitigation funds of \$2,404,289 exceeding the five year limit. However, as these funds have been budgeted to fund future projects, the City does not have any refund exposure. Therefore, Staff is submitting the attached Resolution to accept the AB1600 Report and make findings that there is a continuing need for these unexpended balances of impact fees.

On December 22, 2017, the City posted notice and made copies of the report available for public review in the City Clerk's Office, the Finance Department, and on-line at [www.Santaclaraca.gov/Finance](http://www.Santaclaraca.gov/Finance). In addition, written notice of the time and place of the regularly scheduled City Council meeting on January 23, 2018, along with a copy of the AB1600 Report, were sent to interested parties.

The Staff has scheduled a review of this report for the regularly scheduled City Council meeting on January 23, 2018. The requirement is stated such that at least 15 days must elapse between making the report available and reviewing it with City Council.

### ADVANTAGES AND DISADVANTAGES OF ISSUE

The advantage of supplying the annual report is the City is in compliance with Government Code Section 66000(b)(2). There is no disadvantage.

### ECONOMIC/FISCAL IMPACT

There is no cost to the City other than administrative staff time and expense to develop the report and resolution. There is no economic/fiscal impact since all qualified impact fees held by the City for over five years are either spent or committed, thus eliminating the need to refund any fees to developers according to the Government Code Sections 66000-66003.

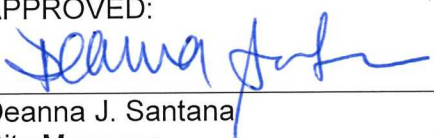
**RECOMMENDATION**

That the Council adopt a Resolution to:

- 1) Accept the AB1600 Report on Development Impact Fees for fiscal year ended June 30, 2017;  
and
- 2) Make findings regarding the continuing need for unexpended balances of impact fees as of June 30, 2017.

  
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Angela Kraetsch  
Director of Finance

APPROVED:

  
\_\_\_\_\_  
Deanna J. Santana  
City Manager

*Documents Related to this Report:*

- 1) *Resolution / Accept AB1600 Report on Development Impact Fees*

**RESOLUTION NO. \_\_\_\_\_**

**A RESOLUTION OF THE CITY OF SANTA CLARA,  
CALIFORNIA, ACCEPTING THE AB1600 REPORT ON  
DEVELOPMENT IMPACT FEES FOR FISCAL YEAR ENDED  
JUNE 30, 2017 AND MAKING FINDINGS REGARDING THE  
CONTINUING NEED FOR UNEXPENDED BALANCES OF  
IMPACT FEES AS OF JUNE 30, 2017**

**BE IT RESOLVED BY THE CITY OF SANTA CLARA AS FOLLOWS:**

**WHEREAS**, Government Code Sections 66000 and following (commonly known as and referenced to herein as “AB1600”) regulate the imposition, collection, maintenance, expenditure and reporting of impact fees imposed on developers for the purpose of defraying costs of public facilities;

**WHEREAS**, the City of Santa Clara (“City”) has identified six (6) impact fees collected from developers that are subject to AB1600’s requirements. Those funds are the Traffic Mitigation Fee (Fund 525), the Sanitary Sewer Outlet Fee (Fund 594), the Sanitary Sewer Connection Fee (Fund 594), the Sanitary Sewer Conveyance Fee (Fund 594), the Storm Drain Fee (Fund 535), and the Parks Mitigation Fee (Fund 532);

**WHEREAS**, in accordance with the provisions of AB1600, the City has set up separate special revenue funds for each type of fee, crediting earned interest to those funds, and spending the accumulated fees and related interest on appropriate expenditures;

**WHEREAS**, the City has prepared an annual report for fiscal year 2016-17 in accordance with AB1600, “AB1600 Report on Development Impact Fees For Fiscal Year ended June 30, 2017,” reflecting the beginning and ending balances of each separate fund containing impact fees; the amount of fees collected and the interest earned for the year; the amount of expenditures and refunds made in the year; the percentage of expenditures paid for by fees; and a description of the type of fees. The amount of each of these development impact fees for FY 2017-18 is reflected in the City’s Municipal Fee Schedule, previously adopted by this Council;

**WHEREAS**, a copy of the annual report has been on file and available for review in the City Clerk's Office and the Finance Department at Santa Clara City Hall, and on line at [SantaClara.gov/Finance](http://SantaClara.gov/Finance) since December 22, 2017;

**WHEREAS**, AB1600 requires the City to make specific findings every five (5) years with respect to any portion of the fees remaining unexpended or uncommitted after a period of five (5) years to 1) identify the purpose to which the fee is to be put, 2) demonstrate a reasonable relationship between the fee and the purpose for which it was charged, 3) identify all sources and amounts of funding anticipated to complete financing of the improvement, and 4) designate the approximate date on which such funding will be available;

**WHEREAS**, the Traffic Mitigation Impact Fee, which was established for the purpose of providing a source of funding for traffic improvements, contains some fee revenues which were received more than five (5) years ago. The sum of \$2,404,289 representing fees and accrued interest collected for traffic mitigation remains unexpended five (5) or more years after deposit of the fees;

**WHEREAS**, the City desires to make the findings required by law with respect to these unexpended fees.

**NOW THEREFORE, BE IT FURTHER RESOLVED BY THE CITY OF SANTA CLARA AS FOLLOWS:**

1. That the City hereby accepts the attached AB1600 Report on Development Impact Fees for Fiscal Year ended June 30, 2017 ("Report"), and makes the following findings:

A. The Traffic Mitigation Impact Fee revenues are to be used to construct traffic improvements needed by new development. The amount of the fee for different land use types is proportionate to the need for traffic improvements generated by such land use types. This fee is still necessary as several projects are tied to larger development projects that have yet to occur. These development projects are still anticipated to take place based on the City's General Plan. The traffic Resolution/AB1600 Report on Development Impact Fees FYE June 30, 2017

mitigation fee is set at a lower rate than justified, and as a result projects are underfunded. This has also slowed down progress on projects resulting in some project costs increasing. Periodically, as the City updates the General Plan and as new development occurs, additional improvement projects are identified and added to the Traffic Mitigation Fee Project List.

B. The portion of the \$8,711,428 fund balance in the Traffic Mitigation Fund that was at least five (5) years old as of June 30, 2017, totals \$2,404,289. The City will use the entire fund balance for the projects identified in Exhibit A of the Report which are programmed in the Capital Improvement Plan. The Traffic Mitigation Fund has projects scheduled in the current Capital Improvement Plan for the next five (5) years, and is counting on additional fees and interest each year. Projects identified in Exhibit A which are funded at less than 100% with Traffic Mitigation Impact fees are funded by other sources, most notably state and federal grants.

2. Effective date. This resolution shall become effective immediately.

I HEREBY CERTIFY THE FOREGOING TO BE A TRUE COPY OF A RESOLUTION PASSED AND ADOPTED BY THE CITY OF SANTA CLARA, AT A REGULAR MEETING THEREOF HELD ON THE 23RD DAY OF JANUARY, 2018 BY THE FOLLOWING VOTE:

AYES: COUNCILORS:

NOES: COUNCILORS:

ABSENT: COUNCILORS:

ABSTAINED: COUNCILORS:

ATTEST:

\_\_\_\_\_  
ROD DIRIDON, JR.  
CITY CLERK  
CITY OF SANTA CLARA

Attachments incorporated by reference:

1. AB1600 Report on Development Impact Fees FYE June 30, 2017

# **AB1600 REPORT ON DEVELOPMENT IMPACT FEES**

## **For Fiscal Year ended June 30, 2017**

### **BACKGROUND**

Cities and counties often charge fees on new development to fund public improvements, public amenities and public services. For example, Traffic Mitigation Fees are used to fund transit facilities, streets, bike lanes and sidewalks. These fees are commonly known as development impact fees (Developer Fees). In 1989, the State Legislature passed Assembly Bill 1600 (AB1600) which added Section 66000 to the California Government Code. The chapter sets forth a number of requirements that local agencies must follow if they are to collect fees from developers to defray the cost of the construction of public facilities related to development projects. Government Code Sections 66000-66003 apply to developer fees established, increased or imposed on or after January 1, 1989, and generally sets forth four requirements:

1. A local jurisdiction must follow the process set forth in the bill and make certain determinations regarding the purpose and use of the fees and to establish a "nexus" or connection between a development project or class of project and the public improvement being financed with the fee.
2. The fee revenue must be segregated from the General Fund in order to avoid commingling of public improvement fees and the General Fund.
3. If a local jurisdiction has had possession of a developer fee for five years or more and has not committed that money to a project or actually spent that money, then it must make findings describing the continuing need for that money each fiscal year after the five years have expired.
4. If a local jurisdiction cannot make the findings required under paragraph 3, then the city or county must go through a refund procedure.

The Traffic Mitigation Fee, Sanitary Sewer Outlet Fee, Sanitary Sewer Connection Fee, Sanitary Sewer Conveyance Fee, Storm Drain Fee, and Parks Mitigation Fee that the City of Santa Clara (City) collects qualify as Development Impact Fees and therefore must comply with the above referenced Government Code Sections. The amount of each of these development impact fees for fiscal year 2017-18 is reflected in the City's Municipal Fee Schedule, previously adopted by the City Council. The schedule is available at <http://santaclaraca.gov/home/showdocument?id=52592>. As required by law, these fees are segregated and accounted for as Special Revenue Funds. Government Code Section 66001 requires the City to make available to the public certain information regarding these fees for each fund within 180 days after the end of each fiscal year. Accordingly, the following report is presented to the City Council for review.

## ANALYSIS

Using the accounting method known as first in, first out (FIFO), which means the first revenue received is assumed to be the first spent, staff analyzed the annual balances at the end of fiscal year 2016-17 to determine what portion, if any, of the balance was five or more years old. If a balance is more than five years old, a review of previously identified projects is undertaken to determine if any developer fees collected need to be refunded.

Many of the identified projects are already underway, and the City has appropriated funds for these projects as noted in the City's 2016-17 CIP Budget Book. The book is available at <http://santaclaraca.gov/home/showdocument?id=47537>. The identification of each Capital Project on which fees were expended and the amount of the expenditures on each Capital Project including the total percentage of the cost of the Capital Project that was funded with fees are detailed in Exhibit A.

### Traffic Mitigation Fee

The Traffic Mitigation Fee is levied to fund improvements or programs to mitigate City traffic problems that result either directly or indirectly from development projects. The following table summarizes the activity for the Traffic Mitigation Fund from 2012-13 through 2016-17.

| <b>Fund 525</b>   | <u>2012-13</u>      | <u>2013-14</u>      | <u>2014-15</u>      | <u>2015-16</u>      | <u>2016-17</u>      |
|-------------------|---------------------|---------------------|---------------------|---------------------|---------------------|
| Beginning Balance | \$ 8,856,320        | \$ 8,646,222        | \$ 9,783,413        | \$ 9,359,921        | \$ 7,852,470        |
| Developer Fees    | 520,499             | 1,557,676           | 231,671             | 1,242,270           | 1,370,084           |
| Interest Income   | 92,311              | 57,590              | 51,522              | 50,840              | 81,481              |
| Expenditures      | (822,908)           | (478,075)           | (706,685)           | (2,800,561)         | (592,607)           |
| Ending Balance    | <u>\$ 8,646,222</u> | <u>\$ 9,783,413</u> | <u>\$ 9,359,921</u> | <u>\$ 7,852,470</u> | <u>\$ 8,711,428</u> |

During 2016-17, the City collected \$1,370,084 of traffic mitigation fees and incurred \$592,607 of project expenditures. The grand total of the Traffic Impact Fee fund balance that is available at the end of 2016-17 is \$8,711,428 of which \$2,404,289 has been held for over five years. These identified projects will make use of all unspent fees collected prior to FY 2011-12 as detailed in Exhibit A.

There is no impact on City resources since all qualified impact fees held by the City for over five years are either spent or committed, thus eliminating the need to refund any fees to developers according to Government Code Sections 66000-66003.

### Sanitary Sewer Outlet Fee

The Sanitary Sewer Outlet Fee is collected from developers to construct public sanitary sewer facilities. The following table summarizes the activity for the Sanitary Sewer Outlet Fees from 2012-13 through 2016-17.

| <b>Fund 594</b>   | <u>2012-13</u>        | <u>2013-14</u>        | <u>2014-15</u>        | <u>2015-16</u>        | <u>2016-17</u>        |
|-------------------|-----------------------|-----------------------|-----------------------|-----------------------|-----------------------|
| Beginning Balance | \$ (627,162)          | \$ (1,312,174)        | \$ (2,637,626)        | \$ (2,568,007)        | \$ (2,547,612)        |
| Developer Fees    | 102,877               | 287,223               | 69,619                | 20,395                | 471,667               |
| Expenditures      | (787,889)             | (1,612,675)           | -                     | -                     | -                     |
| Ending Balance    | <u>\$ (1,312,174)</u> | <u>\$ (2,637,626)</u> | <u>\$ (2,568,007)</u> | <u>\$ (2,547,612)</u> | <u>\$ (2,075,945)</u> |

The amount of developer fees collected in 2016-17 was \$471,667. The outstanding balance in the Sanitary Sewer Outlet Fee Fund at the end of 2016-17 is (\$2,075,945). Amounts have been transferred within the Sewer Enterprise Fund to make up the negative balance for Capital Projects financed with AB1600 development fees.

There is no impact on City resources since all qualified impact fees collected by the City have been spent, thus eliminating the need to refund any fees to developers according to Government Code Sections 66000-66003.

### Sanitary Sewer Connection Fee

The Sanitary Sewer Connection Fee was adopted to improve and expand the sewer collection system. The following table summarizes activity for the Sanitary Sewer Connection Fee from 2012-13 through 2016-17.

| <b>Fund 594</b>   | <u>2012-13</u>         | <u>2013-14</u>         | <u>2014-15</u>         | <u>2015-16</u>         | <u>2016-17</u>         |
|-------------------|------------------------|------------------------|------------------------|------------------------|------------------------|
| Beginning Balance | \$ (13,301,705)        | \$ (13,460,990)        | \$ (21,481,800)        | \$ (26,936,382)        | \$ (38,526,561)        |
| Developer Fees    | 847,928                | 631,156                | 2,072,361              | 1,338,418              | 2,350,574              |
| Expenditures      | (1,007,213)            | (8,651,966)            | (7,526,943)            | (12,928,597)           | (14,153,869)           |
| Ending Balance    | <u>\$ (13,460,990)</u> | <u>\$ (21,481,800)</u> | <u>\$ (26,936,382)</u> | <u>\$ (38,526,561)</u> | <u>\$ (50,329,856)</u> |

During 2016-17, the City collected \$2,350,574 from developer fees and spent \$14,153,869. The current year deficit along with prior cumulative deficits brought the impact fee balance to (\$50,329,856) as of 2016-17. Amounts have been transferred within the Sewer Enterprise Fund to make up the negative balance for Capital Projects financed with AB1600 development fees.

There is no impact on City resources since all qualified impact fees held by the City have been spent, thus eliminating the need to refund any fees to developers according to Government Code Sections 66000-66003.

### Sanitary Sewer Conveyance Fee

The Sanitary Sewer Conveyance Fee was adopted in 2006-07 to address Sewer Main capacity deficiencies resulting from increased development. The following table summarizes the activity for the Sanitary Sewer Conveyance Fees from 2012-13 through 2016-17.

| <b>Fund 594</b>   | <u>2012-13</u>      | <u>2013-14</u>      | <u>2014-15</u>       | <u>2015-16</u>       | <u>2016-17</u>       |
|-------------------|---------------------|---------------------|----------------------|----------------------|----------------------|
| Beginning Balance | \$ 4,828,993        | \$ 7,251,254        | \$ 4,975,657         | \$ 11,504,407        | \$ 13,737,225        |
| Developer Fees    | 2,380,036           | 1,574,963           | 8,407,364            | 2,851,396            | 8,630,774            |
| Interest Income   | 65,897              | 9,853               | 69,163               | 103,444              | 211,354              |
| Expenditures      | (23,672)            | (3,860,413)         | (1,947,777)          | (722,022)            | (74,503)             |
| Ending Balance    | <u>\$ 7,251,254</u> | <u>\$ 4,975,657</u> | <u>\$ 11,504,407</u> | <u>\$ 13,737,225</u> | <u>\$ 22,504,850</u> |

The current year's developer fees and interest income of \$8,630,774 and \$211,354, respectively, were partially offset by expenditures of \$74,503. The net change resulted in a current balance of \$22,504,850 for the Sanitary Sewer Conveyance Fee. There are no fees that have been held over five years.

There is no impact on City resources since all qualified impact fees held by the City for over five years are either spent or committed, thus eliminating the need to refund any fees to developers according to Government Code Sections 66000-66003.

### Storm Drain Fee

The Storm Drain Fee is levied to mitigate City storm drainage that results either directly or indirectly from development projects. The following table summarizes the activity for the Storm Drain Fees from 2012-13 through 2016-17.

| <b>Fund 535</b>   | <u>2012-13</u>    | <u>2013-14</u>    | <u>2014-15</u>    | <u>2015-16</u>    | <u>2016-17</u>    |
|-------------------|-------------------|-------------------|-------------------|-------------------|-------------------|
| Beginning Balance | \$ 812,161        | \$ 862,697        | \$ 741,095        | \$ 467,327        | \$ 552,889        |
| Developer Fees    | 49,682            | 2,105             | 11,120            | 239,376           | 10,375            |
| Interest Income   | 7,816             | 4,825             | 2,809             | 4,163             | 5,213             |
| Expenditures      | (6,962)           | (128,532)         | (287,697)         | (157,977)         | (13,407)          |
| Ending Balance    | <u>\$ 862,697</u> | <u>\$ 741,095</u> | <u>\$ 467,327</u> | <u>\$ 552,889</u> | <u>\$ 555,070</u> |

During 2016-17, the City collected \$10,375 from developer fees, earned \$5,213 from interest, and incurred \$13,407 of project expenditures. The grand total of the Storm Drain Fees that is available at the end of 2016-17 is \$555,070. There are no fees that have been held over five years.

There is no impact on City resources since all qualified impact fees held by the City for over five years are either spent or committed, thus eliminating the need to refund any fees to developers according to Government Code Sections 66000-66003.

## Parks Mitigation Fee

The Parks Mitigation Fee was adopted in fiscal year 2014-15. Fees received can be used to provide (acquire) public parkland and/or make necessary park improvements according to the restrictions of the Mitigation Fee Act and help the City to address its park, recreation and open space needs.

| <b>Fund 532</b>   | <b>2012-13</b> | <b>2013-14</b> | <b>2014-15</b> | <b>2015-16</b> | <b>2016-17</b> |
|-------------------|----------------|----------------|----------------|----------------|----------------|
| Beginning Balance | \$ -           | \$ -           | \$ -           | \$ -           | \$ -           |
| Developer Fees    | -              | -              | -              | -              | 14,780,447     |
| Interest Income   | -              | -              | -              | -              | 90,301         |
| Expenditures      | -              | -              | -              | -              | (1,325,057)    |
| Ending Balance    | \$ -           | \$ -           | \$ -           | \$ -           | \$ 13,545,691  |

During 2016-17, the City collected \$14,780,447 from developer fees, earned \$90,301 from interest and incurred \$1,325,057 of project expenditures. The grand total of the Parks Mitigation Fee that is available at the end of 2016-17 is \$13,545,691. There are no fees that have been held over five years.

## **IMPACT ON CITY RESOURCES**

In summary, there is no impact on City resources since all qualified impact fees held by the City for over five years are either spent or committed, thus eliminating the need to refund any fees to developers according to Government Code Sections 66000-66003.

**PUBLIC NOTICE:** Public notification was achieved by posting the availability of the report 15 days prior to the meeting, as required by Government Code Section 66006(b)(2).

## **Attachments:**

Exhibit A: Summary of Development Impact Fees

# Exhibit A

## City of Santa Clara Summary of Local Agency Improvement Fees (AB 1600 Development Impact Fees) Report for Fiscal Year Ended June 30, 2017

### Traffic Mitigation Fee (Fund 525)

| Traffic Mitigation Fee (Fund 525)             |              |
|-----------------------------------------------|--------------|
| FY 2015-16 Ending Fund Balance                | \$ 7,852,470 |
| Fees Collected                                | 1,370,084    |
| Interest Earned                               | 81,481       |
| Expenditures                                  | (592,607)    |
| FY 2016-17 Ending Fund Balance                | \$ 8,711,428 |
| Funds Accumulated in Current and Last 5 Years | \$ 6,307,139 |
| Funds Held Longer than 5 Years                | \$ 2,404,289 |
| Projects Programmed for Impact Fees           | \$ 6,299,289 |

|              |                                                                | Traffic Mitigation Fee<br>Since Inception Date Through June 30, 2017 |                           |                                      |                                     |                                          | FY2016-17<br>Impact Fee<br>Expenditure |
|--------------|----------------------------------------------------------------|----------------------------------------------------------------------|---------------------------|--------------------------------------|-------------------------------------|------------------------------------------|----------------------------------------|
| Project<br># | Description                                                    | Total Project<br>Appropriation<br>All Funding<br>Sources             | % Impact<br>Fee<br>Funded | Total Impact<br>Fee<br>Appropriation | Total Impact<br>Fee<br>Expenditures | Impact Fee<br>Appropriation<br>Remaining |                                        |
| 2616         | Great America Parkway -Bus Turn Out                            | \$ 225,000                                                           | 40%                       | \$ 90,000                            | \$ 3,438                            | \$ 86,562                                | \$ -                                   |
| 2621         | Improvement - Great America Parkway                            | 2,601,000                                                            | 40%                       | 1,040,400                            | 430,973                             | 609,427                                  | 130,436                                |
| 2624         | Coleman Avenue Widening                                        | 190,000                                                              | 39%                       | 74,332                               | 79                                  | 74,253                                   | -                                      |
| 2628         | Traffic Signal Modification & Hwy 101 Off-Ramp Widening @ GAP  | 390,000                                                              | 40%                       | 156,000                              | 1,436                               | 154,564                                  | -                                      |
| 2630         | Mission College Blvd and GAP intersection Improvements         | 5,256,086                                                            | 42%                       | 2,200,000                            | 593,292                             | 1,606,708                                | -                                      |
| 2631         | Industrial Sidewalk Program                                    | 189,579                                                              | 40%                       | 75,832                               | 30,208                              | 45,624                                   | -                                      |
| 2638         | Lawrence at Monroe - Intersection Improvement Phase "B"        | 300,000                                                              | 100%                      | 300,000                              | 12,500                              | 287,500                                  | -                                      |
| 2639         | Traffic Signal Modification - San Tomas at Homestead Phase "B" | 548,470                                                              | 90%                       | 494,000                              | 494,000                             | -                                        | -                                      |
| 2640         | Traffic Signal - Lafayette Street at Yerba Buena Way           | 150,000                                                              | 40%                       | 60,000                               | 8,928                               | 51,072                                   | -                                      |
| 2649         | Traffic Studies and Signal Needs Assessment/Upgrade            | 400,000                                                              | 55%                       | 220,000                              | 151,701                             | 68,299                                   | -                                      |
| 2658         | Intersection Improvements - ECR at San Tomas - Phase "B"       | 2,843,588                                                            | 59%                       | 1,683,590                            | 1,683,590                           | -                                        | -                                      |
| 2660         | Intersection Improvement -ECR at Lafayette Street - Phase "B"  | 1,250,000                                                            | 100%                      | 1,250,000                            | 3,590                               | 1,246,410                                | -                                      |
| 2665         | Central Control Traffic Signal Upgrade                         | 1,876,800                                                            | 83%                       | 1,563,113                            | 966,497                             | 596,616                                  | 240                                    |
| 2666         | Traffic Signal - Monroe Street and Chromite Drive              | 400,000                                                              | 100%                      | 400,000                              | -                                   | 400,000                                  | -                                      |
| 2667         | Install Sidewalks on San Tomas Expressway                      | 183,000                                                              | 100%                      | 183,000                              | 122,882                             | 60,118                                   | -                                      |
| 2668         | Traffic Pre-Emptors                                            | 845,259                                                              | 90%                       | 760,734                              | 517,512                             | 243,222                                  | 983                                    |
| 2669         | Traffic Signal Enhancements                                    | 800,000                                                              | 100%                      | 800,000                              | 474,717                             | 325,283                                  | 88,061                                 |
| 2670         | Pedestrian and Bicycle Enhancement Facilities                  | 1,300,000                                                            | 100%                      | 1,300,000                            | 1,037,431                           | 262,569                                  | 81,388                                 |
| 2671         | Creeks Trails Expansion Master Plan                            | 291,500                                                              | 100%                      | 291,500                              | 291,500                             | -                                        | 291,500                                |
| 2672         | Traffic Monitoring at Various Locations- Phase "C"             | 287,000                                                              | 100%                      | 287,000                              | 105,938                             | 181,062                                  | -                                      |
| Totals       |                                                                | \$ 20,327,282                                                        |                           | \$ 13,229,501                        | \$ 6,930,212                        | \$ 6,299,289                             | \$ 592,608                             |

### Sanitary Sewer Outlet Fee (Fund 594)

| Sanitary Sewer Outlet Fee (Fund 594)  |                       |
|---------------------------------------|-----------------------|
| FY 2015-16 Ending Fund Balance        | \$ (2,547,612)        |
| Fees Collected                        | 471,667               |
| Interest Earned                       | -                     |
| Expenditures                          | -                     |
| <b>FY 2016-17 Ending Fund Balance</b> | <b>\$ (2,075,945)</b> |
| Funds Accumulated in Last 5 Years     | \$ 1,005,236          |
| Funds Held Longer than 5 Years        | \$ -                  |
| Projects Programmed for Impact Fees   | \$ -                  |

|              |                        | Sanitary Sewer Outlet Fee<br>Since Inception Date Through June 30, 2017 |                           |                                      |                                     |                                                         | FY 2016-17<br>Impact Fee<br>Expenditures |
|--------------|------------------------|-------------------------------------------------------------------------|---------------------------|--------------------------------------|-------------------------------------|---------------------------------------------------------|------------------------------------------|
| Project<br># | Description            | Total Project<br>Appropriation<br>All Funding<br>Sources                | % Impact<br>Fee<br>Funded | Total Impact<br>Fee<br>Appropriation | Total Impact<br>Fee<br>Expenditures | Impact Fee<br>Appropriation<br>Remaining <sup>(1)</sup> |                                          |
| 1907         | Development Extensions | \$ 220,445                                                              | 100%                      | 220,445                              | 2,296,390                           | \$ (2,075,945)                                          | \$ -                                     |

Note (1) Amounts have been transferred within the Sewer Enterprise Fund to make up the negative balance for Capital Projects financed with AB1600 Development Fees  
There were no interfund loans.

### Sanitary Sewer Connection Fee (Fund 594)

| Sanitary Sewer Connection Fee (Fund 594)      |                        |
|-----------------------------------------------|------------------------|
| FY 2015-16 Ending Fund Balance                | \$ (38,526,561)        |
| Fees Collected                                | 2,350,574              |
| Interest Earned                               | -                      |
| Expenditures                                  | (14,153,869)           |
| <b>FY 2016-17 Ending Fund Balance</b>         | <b>\$ (50,329,856)</b> |
| Funds Accumulated in Current and Last 5 Years | \$ 8,674,300           |
| Funds Held Longer than 5 Years                | \$ -                   |
| Projects Programmed for Impact Fees           | \$ -                   |

|              |                                         | Sanitary Sewer Connection Fee<br>Since Inception Date Through June 30, 2017 |                           |                                      |                                     |                                                         | FY 2016-17<br>Impact Fee<br>Expenditures |
|--------------|-----------------------------------------|-----------------------------------------------------------------------------|---------------------------|--------------------------------------|-------------------------------------|---------------------------------------------------------|------------------------------------------|
| Project<br># | Description                             | Total Project<br>Appropriation<br>All Funding<br>Sources                    | % Impact<br>Fee<br>Funded | Total Impact<br>Fee<br>Appropriation | Total Impact<br>Fee<br>Expenditures | Impact Fee<br>Appropriation<br>Remaining <sup>(1)</sup> |                                          |
| 1908         | S.J.- S.C. Regional Wastewater Facility | \$ 65,668,012                                                               | 8%                        | 5,455,000                            | 55,784,856                          | \$ (50,329,856)                                         | \$ 14,153,869                            |

Note (1) Amounts have been transferred within the Sewer Enterprise Fund to make up the negative balance for Capital Projects financed with AB1600 Development Fees  
There were no interfund loans.

## Sanitary Sewer Conveyance Fee (Fund 594)

| Sanitary Sewer Conveyance Fee (Fund 594)      |                      |
|-----------------------------------------------|----------------------|
| FY 2015-16 Ending Fund Balance                | \$ 13,737,225        |
| Fees Collected                                | 8,630,774            |
| Interest Earned                               | 211,354              |
| Expenditures                                  | (74,503)             |
| <b>FY 2016-17 Ending Fund Balance</b>         | <b>\$ 22,504,850</b> |
| Funds Accumulated in Current and Last 5 Years | \$ 26,841,629        |
| Funds Held Longer than 5 Years                | \$ -                 |
| Projects Programmed for Impact Fees           | \$ 7,333,819         |

|           |                                      | Sanitary Sewer Conveyance Fee<br>Since Inception Date Through June 30, 2017 |                           |                                      |                                     |                                          | FY 2016-17<br>Impact Fee<br>Expenditures |
|-----------|--------------------------------------|-----------------------------------------------------------------------------|---------------------------|--------------------------------------|-------------------------------------|------------------------------------------|------------------------------------------|
| Project # | Description                          | Total Project<br>Appropriation<br>All Funding<br>Sources                    | % Impact<br>Fee<br>Funded | Total Impact<br>Fee<br>Appropriation | Total Impact<br>Fee<br>Expenditures | Impact Fee<br>Appropriation<br>Remaining |                                          |
| 1909      | Sanitary Sewer Capacity Improvements | \$ 16,326,124                                                               | 100%                      | 16,326,124                           | 8,992,305                           | \$ 7,333,819                             | \$ 74,503                                |

## Storm Drain Fee (Fund 535)

| Storm Drain Fee (Fund 535)                    |                   |
|-----------------------------------------------|-------------------|
| FY 2015-16 Ending Fund Balance                | \$ 552,889        |
| Fees Collected                                | 10,375            |
| Interest Earned                               | 5,213             |
| Expenditures                                  | (13,407)          |
| <b>FY 2016-17 Ending Fund Balance</b>         | <b>\$ 555,070</b> |
| Funds Accumulated in Current and Last 5 Years | \$ 636,372        |
| Funds Held Longer than 5 Years                | \$ -              |
| Projects Programmed for Impact Fees           | \$ 162,262        |

|               |                                            | Storm Drain Fee<br>Since Inception Date Through June 30, 2017 |                              |                                      |                                     |                                          | FY2016-17<br>Impact Fee<br>Expenditure |
|---------------|--------------------------------------------|---------------------------------------------------------------|------------------------------|--------------------------------------|-------------------------------------|------------------------------------------|----------------------------------------|
| Project #     | Description                                | Total Project<br>Appropriation<br>All Funding<br>Sources      | %<br>Impact<br>Fee<br>Funded | Total Impact<br>Fee<br>Appropriation | Total Impact<br>Fee<br>Expenditures | Impact Fee<br>Appropriation<br>Remaining |                                        |
| 1831          | Miscellaneous Storm Drain Improvements     | \$ 871,028                                                    | 34%                          | \$ 292,950                           | 292,950                             | \$ -                                     | \$ -                                   |
| 1834          | Storm Drain System Improvement             | 560,374                                                       | 99%                          | 554,127                              | 391,865                             | 162,262                                  | 13,407                                 |
| 1835          | Storm Drain Outfall Reconstruction Program | 973,000                                                       | 26%                          | 250,000                              | 250,000                             | -                                        | -                                      |
| <b>Totals</b> |                                            | <b>\$ 2,404,402</b>                                           |                              | <b>\$ 1,097,077</b>                  | <b>\$ 934,815</b>                   | <b>\$ 162,262</b>                        | <b>\$ 13,407</b>                       |

# Parks Mitigation Fee (Fund 532)

| Parks Mitigation Fee (Fund 532)               |                      |
|-----------------------------------------------|----------------------|
| FY 2015-16 Ending Fund Balance                | \$ -                 |
| Fees Collected                                | 14,780,447           |
| Interest Earned                               | 90,301               |
| Expenditures                                  | (1,325,057)          |
| <b>FY 2016-17 Ending Fund Balance</b>         | <b>\$ 13,545,691</b> |
| Funds Accumulated in Current and Last 5 Years | \$ 14,780,447        |
| Funds Held Longer than 5 Years                | \$ -                 |
| Projects Programmed for Impact Fees           | \$ 6,402,451         |

|               |                                                                                        | Parks Mitigation Fee<br>Since Inception Date Through June 30, 2017 |                           |                                      |                                     |                                          | FY2016-17<br>Impact Fee<br>Expenditure |
|---------------|----------------------------------------------------------------------------------------|--------------------------------------------------------------------|---------------------------|--------------------------------------|-------------------------------------|------------------------------------------|----------------------------------------|
| Project<br>#  | Description                                                                            | Total Project<br>Appropriation<br>All Funding<br>Sources           | % Impact<br>Fee<br>Funded | Total Impact<br>Fee<br>Appropriation | Total Impact<br>Fee<br>Expenditures | Impact Fee<br>Appropriation<br>Remaining |                                        |
| 3005          | Senior Center Refurbishment<br>International Swim Center, Community Recreation Center, | \$ 45,000                                                          | 100%                      | \$ 45,000                            | 44,846                              | \$ 154                                   | \$ 44,846                              |
| 3172          | ISHOF                                                                                  | 2,310,563                                                          | 7%                        | 160,463                              | -                                   | 160,463                                  | -                                      |
| 3177          | Youth Soccer Fields & Athletic Facilities                                              | 28,302,474                                                         | 20%                       | 5,612,474                            | 1,026,340                           | 4,586,134                                | 1,026,340                              |
| 3178          | Playground Construction                                                                | 1,280,441                                                          | 42%                       | 535,121                              | -                                   | 535,121                                  | -                                      |
| 3181          | Park Impact Fees Monitoring Project                                                    | 496,622                                                            | 45%                       | 224,450                              | 72,538                              | 151,912                                  | 72,538                                 |
| 3182          | New Neighborhood Park & Community Garden (San Tomas<br>& Monroe)                       | 2,745,203                                                          | 42%                       | 1,150,000                            | 181,333                             | 968,667                                  | 181,333                                |
| <b>Totals</b> |                                                                                        | <b>\$ 35,180,303</b>                                               |                           | <b>\$ 7,727,508</b>                  | <b>\$ 1,325,057</b>                 | <b>\$ 6,402,451</b>                      | <b>\$ 1,325,057</b>                    |